IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V

Item No.-524

CP (CAA) No. 01/230/232/ND/2023

IN THE MATTER OF:

BCC Edutech Pvt Ltd. & Anr. With Conscient Infrastructure Pvt. Ltd

....Applicant

SECTION

U/s 230-232

Order delivered on 24.05.2023

CORAM:
SHRI MAHENDRA KHANDELWAL,
HON'BLE MEMBER (JUDICIAL)

DR. BINOD KUMAR SINHA,
HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant	: Adv Sandeep Bhuraria, Adv Nishtha Grover, Adv Monish
For the Respondent	:
For the IT Dept.	: Mr. Sanjay Kumar, Ms. Easha, Ms. Hemlata Rawat
For the RD	: Adv Shankari Mishra, Adv Niharika Tanwar
For the OL	: Ms. Hemlata Rawat, Mr. Ayushman

ORDER

Heard the submissions made by Ld. Counsel for the Petitioner, Proxy Counsel for RD, Proxy Counsel for OL and Ld. Counsel for the IT Dept. Proxy Counsel for OL has no objection to the proposed scheme. In respect of demand of income tax, Petitioner Company has filed an affidavit giving undertaking that demand crystallised after as appeal shall be paid by the transferee company. Proxy Counsel for the RD pointed out about the observation in respect of Section 185 of the Companies Act regarding loans and advances. Ld. Counsel for the Petitioner submits that since it is a wholly owned subsidiary of the transferor company, therefore, as per Section 185(3)(c) provisions of sub-section 1 and 2 are not applicable. However, he sought time to file an affidavit stating that they are in compliance of the proviso to Section 185(3). Affidavit may be filed before the next date of hearing. List the matter on **31.05.2023.**

Sd/-
(DR. BINOD KUMAR SINHA)
MEMBER (T)

Sd/-
(MAHENDRA KHANDELWAL)
MEMBER (J)

Khushboo
24.05.2023